

12. 9:00 AM CASE NUMBER: L25-09761
CASE NAME: JPMORGAN CHASE BANK N.A. VS. KATHERINE TSENG
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT
FILED BY:
TENTATIVE RULING:

Background

Defendant filed a Motion, on 3/27/26, to set aside the default judgment, which was filed on 3/25/26. Request for Entry of Default was filed on 3/17/26.

The Motion was properly noticed, and is unopposed.

Defendant cites mistake and inadvertence, claiming that she made numerous attempts to file an Answer to the Complaint, but had difficulty with the process of filing. She specifically cites procedural and formatting issues, along with providing proper fee waiver documentation.

Analysis

Defendant seeks relief under Section 473(b) of the CCP, which provides authority to the court to set aside a judgment in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect. The statute requires that the motion be made no later than 6 months from the time the judgment was taken.

In the instant matter, Defendant moved to set aside the Judgment only two days after Judgment was filed. Moreover, the court is not presented with any reason to doubt the veracity of her declaration that she would have timely filed an Answer had she not faced difficulty with procedural, formatting and other filing requirements.

Disposition

Defendant's Motion is granted.

Default Judgment and Entry of Default are set aside.

Defendant to file Answer within 10 days of 6/20/26.

Court will file the Order reflecting this ruling.

13. 9:00 AM CASE NUMBER: L25-10633

CASE NAME: WELLS FARGO BANK, N.A. VS. KAREN ENNIS

*HEARING ON MOTION FOR DISCOVERY TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AND OF NONAPPEARANCE

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), as well as a Declaration. Both were filed on 3/10/26.

Plaintiff attached the particular facts at issue, numbered One through Eleven and entitled, "Requests For Admission" in Exhibit A to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

14. 9:00 AM CASE NUMBER: L25-14118
CASE NAME: JPMORGAN CHASE BANK N.A. VS. ALEX GORBACHEVSKIY
***MOTION/PETITION TO COMPEL ARBITRATION TO COMPEL ARBITRATION AND MOTION TO QUASH SERVICE OF SUMMONS**
FILED BY: GORBACHEVSKIY, ALEX
TENTATIVE RULING:

Defendant filed a Motion on 3/16/26, to both Quash the Summons (Motion to Quash), arguing invalid service, as well as to Compel Arbitration (Arbitration Motion). Defendant also filed a Declaration, a Memorandum, and an Exhibit.

Copies of these documents were timely served on Plaintiff.

Plaintiff filed an opposition.

Background

The proof of service of process, filed on 1/26/26, and of which the court takes judicial notice, reflects that a registered process service served the process documents on a female adult who identified herself as a resident of the 687 Dolphin Drive address. Apparently, this adult then took receipt of the documents, claimed that either she or Defendant was not a resident, and then threw the documents to the ground.

The proof of service also reflects multiple, prior attempts of service at this address, and that the process documents were subsequently mailed to the address.

Defendant specifically claims that substitute service in this matter is invalid because the process papers were left outside on the curb of the residence. While Defendant contends he was not present during this event, he does appear to concede that a resident of the address was in fact present. He also does not appear to dispute that he actually received the process documents.

The Plaintiff, in their opposition, concedes that litigation should be suspended and that arbitration should begin. The only dispute that remains on this particular issue is over which party should trigger the arbitration process. Defendant claims that that burden rests with Plaintiff.

The language of the cardmember agreement, provided in Defendant's Exhibit A, includes the following language: